

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT'S OBJECTIONS TO PLAINTIFFS' PROPOSED FINAL
JUDGMENT (v2) AND COUNTER-PROPOSED FINDINGS OF FACT
AND CONCLUSIONS OF LAW**

Preliminary note (transcript & compressed filing window). At chambers' direction today (August 29, 2025), Defendant files these Objections early on the eve of the holiday. **The official trial transcript was requested on August 22, 2025 but has not yet been produced.** Testimony is identified by witness and date; Defendant will promptly supplement page:line citations upon receipt. *This filing is not a waiver of transcript-based objections or the rule of completeness.*

COMES NOW Defendant, Marc Moszkowski, *pro se*, and files these **Objections to Plaintiffs' Proposed Final Judgment (v2) and Counter-Proposed Findings of Fact and Conclusions of Law**, and respectfully

asks the Court to (i) strike unsupported findings, (ii) conform dates to the admitted record, and (iii) adopt the clean, evidence-tethered replacements set out below.

A. Reference Copies & Appendices:

For ease of review, Plaintiffs' Proposed Final Judgment (v2) with line numbers is attached as **Exhibit "A."**

Defendant's analytical materials are provided as **Appendix "A"** (Line-by-Line Objections Table, landscape)

B. Two-Minute Bench Roadmap (for the Court)

The following 8 items resolve most disputes without a transcript. Each item includes a single action and a record hook.

- 1)** Ownership chain (Toke) → *Strike* absent admitted registry / transfer exhibits.
- 2)** Foreign domicile & capacity → *Strike* absent current registry certificate + authority.
- 3)** Authority to sue (DeepGulf/Toke) → *Strike* absent board minutes / consent free of conflict.
- 4)** Genesis chronology (Oct 2004 decision → Nov 6 web → Dec 1, 2004 incorporation → Jan 2005 Provence) → *Conform dates*.
- 5)** Damages (unliquidated) → *Deny* absent admitted model + offsets.

- 6) Rule of completeness → *Decline* findings from excerpts unless full doc admitted.
- 7) Transfer dates (2010/2012) → *Strike/Conform* (±6-month errors; no transfer instruments admitted).
- 8) Self-contradictions (two-director board vs. “duly authorized”) → *Adopt supported; strike unsupported*.
- 9) PX-15 (single-page demonstrative) → *Assign no weight* pending motion; strike any residual-base or 66.67% allocation; require period-correct model + ledger/bank tie-outs.

C. Prefatory Statement and Ground Rule

Defendant respectfully submits these Objections and Counter-Proposed Findings. Each factual finding must be supported by competent, substantial evidence admitted at trial. Where a finding relies on testimony, it must include the witness name and Transcript page:line; where a finding relies on a document, it must include the trial exhibit number. *No exhibit, no finding.*

Note on length and organization. Defendant respectfully regrets the length of this submission. Its volume reflects (i) the need to anchor every proposed finding in admitted exhibits or transcript page:line; (ii) consolidation of chronology/ownership issues that have been raised across

prior filings; and (iii) the necessity of addressing a late-surfaced, single-page demonstrative (**PX-15**) in a record-linked way. To minimize burden on the Court, the objections are organized in a compact roadmap and table format so findings may be adopted, conformed, or stricken paragraph-by-paragraph without rereading prior papers.

Citation Key

- *Exhibits*: “PX-” for Plaintiff’s exhibits; “DX-” for Defendant’s exhibits; “Ct-___” for Court exhibits
- *Transcript*: “Tr. [date] at p:line.” If no transcript exists, state “No transcript available; finding cannot be grounded in testimony.”

Reference copy. For ease of review, Plaintiffs’ Proposed Final Judgment (v2) with line numbers is attached as **Exhibit “A.”** All line references in the appendices refer to **Exhibit A**.

Procedural note: Filed in addition to Defendant’s *Motion to Strike PX-15 (and Derived Findings)*. Pending that motion, the Court should **assign no weight** to PX-15 or any derivative finding.

D. Objections

I. Introduction

1. On August 21, 2025, Plaintiffs submitted a Revised Proposed Final

Judgment. The submission embeds numerous factual assertions without identifying admitted exhibits or precise transcript citations.

2. The Court's findings must rest on competent, substantial evidence actually admitted. Unsupported characterizations and conclusory statements cannot be adopted as findings.
3. Defendant therefore tenders itemized objections and clean replacement findings that conform to the evidentiary record.
4. Threshold reliability. Plaintiffs' narrative contains pervasive omissions of proof, internal inconsistencies, chronology reversals, and self-contradictions. Under Florida's "competent, substantial evidence" standard, findings cannot rest on argument or speculation. Where a proposed fact is not tied to an admitted exhibit or transcript page:line, or conflicts with the earliest reliable admitted record, the Court must decline to adopt it. Stated plainly: no exhibit, no finding—and conflicting assertions cannot be credited over contemporaneous documents.
5. This matter is in state court only because Plaintiffs represented that "Toke Oil & Gas, S.A." is an extant foreign entity, which affected the earlier federal case's posture. That jurisdictional posture is not merits proof. Plaintiffs still bear the burden here to prove—by admitted

foreign corporate records—Toke’s legal existence, capacity, domicile, and any chain-of-title to DeepGulf. Absent admitted proof, no finding should enter on those topics.

6. Executive Summary (for the Court)

- **PX-15 quarantined.** Plaintiffs’ page redefines “profit” as (Total – DeepGulf receipts), then re-awards 66.67% of that residual to DeepGulf on top of receipts—implying 83.42% of the whole. PX-15 is a single-page demonstrative with no authentication, no § 90.956 summary foundation, and no ledger/bank tie-outs; pending the Motion to Strike, it cannot support findings.
- **This submission organizes, rather than repeats, the record.** The issues below have been raised across prior filings; they are presented here in a single, record-linked framework the Court can adopt paragraph-by-paragraph.
- **This filing is about evidence, not rhetoric.** Every adopted finding must carry an admitted exhibit or transcript page:line; where Plaintiffs supply neither—or their assertions conflict with the contemporaneous record—the finding is stricken.
- Because Plaintiffs did not prove **Toke’s legal existence/capacity, authorization to sue, or timely accrual**, the Court should deny

Plaintiffs' Proposed Final Judgment and enter take-nothing judgment for Defendant.

- **Three dispositive defects recur:**

- a. **Missing Evidence** — Numerous findings lack any admitted exhibit or transcript p:line. Under the proposed rule, such findings are stricken.

- b. **Chronology Mismatch** — Asserted dates (e.g., alleged 2010/2012 transfers) conflict with reliable record dates and, in some instances, are off by ~6 months; absent admitted proof, such findings are stricken or conformed.

- c. **Internal Contradictions / Authority Gaps** — Plaintiffs' own statements (e.g., two-director board: Howard + Moszkowski) defeat claims of corporate authorization and capacity; unsupported assertions are stricken.

- **Requested actions (concise):** (a) require parenthetical evidence citations for every finding; (b) strike any paragraph lacking competent, admitted support; (c) adopt clean replacement findings tethered to admitted exhibits/transcript cites only.

- **Procedural posture:** State-court relitigation rests solely on Plaintiffs' representation that Toke is a foreign, extant entity;

without admitted foreign corporate records (registry certificate, transfers, approvals, compliance), the Court should decline any capacity/ownership findings.

- **Already denied amount repackaged.** The Court has already held that *“Plaintiffs failed to meet the clear and convincing evidence standard required by § 772.11 for the **\$959,764.22** claim, and no relief is granted.”* Plaintiffs now advance \$869,842.81—a derivative slice of the same alleged “diversion” built from PX-15’s residual arithmetic. The Court should assign no weight and decline any derivative award.

II. Global Objections to Form and Proof

- 1. Omissions of Evidence Citations.** Many proposed findings cite only “trial testimony” without page:line or else provide no exhibit references at all. Findings so framed cannot be adopted.
- 2. Hearsay and Inadmissible Materials.** To the extent Plaintiffs rely on materials not admitted at trial, those materials are not competent evidence and cannot support findings.
- 3. Selective Excerpts / Rule of Completeness.** Findings based on partial quotations of emails or documents must be rejected unless the

full document was admitted and cited.

- 4. Demonstratives and “Summaries” (PX-15).** No finding may rest on a party-created demonstrative (e.g., PX-15) absent authentication (§ 90.901). If offered as a summary, the proponent must present a qualified sponsoring witness and show the underlying data were available (§ 90.956). Without that foundation, such pages are argument, not evidence, and warrant no weight; any residual prejudice/confusion triggers § 90.403 exclusion.

Requested Relief (Global): Direct that every finding in any final judgment include a parenthetical evidence citation (Exhibit No. and/or Transcript p:line). Any paragraph lacking such a citation must be stricken.

III. Summary of Principal Defects (Topics)

This Court should not adopt any finding that:

- 1.** Declares Toke ownership or chain of title without *admitted* corporate records proving each transfer and authority.
- 2.** Treats Toke domicile/presence in Timor-Leste as established without *admitted* government filings.

3. Assumes DeepGulf's authority to sue without an *admitted* board resolution or unanimous consent free of conflicts.
4. Conflates revenue allocations with equity transfers, absent *admitted* chain-of-title exhibits.
5. Disregards limitations by positing delayed discovery despite *admitted* communications demonstrating actual/constructive knowledge.
6. Adopts damages figures without an *admitted* model (inputs, timeframe, offsets, reconciliations) grounded in the record.

IV. Itemized Objections and Clean Replacements (By Plaintiffs' Paragraph)

See Appendix A

V. Topical Objections and Proposed Findings (Narrative Form)

1. Toke Ownership / "Uncertainty"

Objection. Plaintiffs plead certainty (100% ownership via 2010/2012 transfers) while offering no admitted chain-of-title exhibits and no transcript page:line; the "uncertainty" trope is argumentative and unsupported.

Proposed Finding. The record lacks admitted corporate documents establishing Toke’s chain of title, domicile, or any transfer of equity to DeepGulf in 2010 or 2012. [No admitted exhibit identified].

2. Toke Identity, Legal Existence, and Domicile (*Foreign Status Claimed*)

Objection. Plaintiffs assert that “Toke Oil & Gas, S.A. is presently a wholly owned subsidiary of DeepGulf, domiciled in Timor-Leste,” yet identify no admitted foreign corporate records proving (i) Toke’s legal existence during the relevant years; (ii) its domicile; (iii) any chain-of-title transferring equity to DeepGulf; or (iv) Toke’s legal capacity to sue under applicable law. The use of a Pensacola mailing address by a co-litigant does not establish—or negate—foreign domicile; it simply underscores that no competent, admitted proof of identity, domicile, or ownership was provided.

Proposed Finding. The record contains no admitted foreign corporate records (e.g., Timor-Leste registry certificate/printout, articles/statute and amendments, shareholder ledger, notarized transfer instruments, board/shareholder approvals, ministerial filings) establishing Toke’s legal existence, domicile, or any transfer of equity to DeepGulf. The Court therefore declines to adopt any finding that Toke “is presently a wholly

owned subsidiary of DeepGulf, domiciled in Timor-Leste.” [No admitted exhibit identified].

3. Corporate Authority to Sue

Objection. Plaintiffs identified no admitted board resolution or unanimous consent free of disabling conflict authorizing this litigation.

Proposed Finding. Plaintiffs presented no admitted corporate authorization to file or maintain this action. [No admitted exhibit identified].

4. Revenue Allocations ≠ Equity Transfers

4.1. Base-switch + double-count. PX-15 defines “Toke profits available for distribution” as **\$1,304,764.22** by netting out DeepGulf’s **\$1,318,169.45** receipts from the true total **\$2,622,933.67**, then claims **66.67%** of that **residual (\$869,842.81)** on top of receipts—implying **\$2,188,012.26 (≈83.42%)** to DeepGulf. This is **double counting** and cannot support findings.

Computation (for the Court’s convenience): Total: **\$2,622,933.67**; DeepGulf receipts: **\$1,318,169.45**; residual: **\$1,304,764.22**; 2/3 of residual: **\$869,842.81**;

DeepGulf implied “entitlement”: $\$1,318,169.45 + \$869,842.81 = \$2,188,012.26 \rightarrow \$2,188,012.26 \div \$2,622,933.67 = 83.42\%$ — contrary to the **period-correct equity share (33.33%)** and despite DeepGulf having already received $\approx 50.3\%$ under the **invoice allocations** ($50\% \times (\text{markup} - 4\% \text{ withholding tax on the BS[xxxxx] invoice amount})$).

4.2. “66.67% of the residual” has no admitted basis.

If Plaintiffs aim to reallocate Defendant’s **33.33%**, the figure would be **33.33%**, not **66.67%**. If they invoke later “**100%**” ownership, that does not retro-entitle DeepGulf to pre-acquisition profits—and even then why only **66.67%**? There is no admitted agreement or damages model for 66.67%.

4.3. Period-correct ownership (chain + amounts).

Ownership and entitlement must be **period-correct**:

- **Aug 12, 2010, and Sep 15, 2010: Favaro → Ximenes** (Hali/Vogue).
- **Oct 27, 2010: Ximenes → DeepGulf (33.33%) → post-transfer distributions \$64,000.**

- **Dec 13, 2012:** remaining **33.33%** → **DeepGulf** → post-transfer distributions **\$49,975.00**.

Pre-transfer profits belonged to the then-owner; PX-15 cannot retro-allocate earlier receipts to DeepGulf.

4.4. Invoice formula ties receipts to profit.

Invoices from DeepGulf to Toke compute consideration as “**50% × (markup – 4% [withholding tax] on the BS[xxxxxx] invoice amount)**”; although captioned “Project Management Services,” the payments are profit-linked allocations and were paid. Any model must reconcile to these paid invoices and admitted ledgers/banks.

Proposed Finding. The Court declines any PX-15-based allocation that (i) treats **(Total – DeepGulf receipts)** as the “profit” base, (ii) awards **66.67%** of that residual to DeepGulf, or (iii) retro-allocates pre-transfer profits. Any allocation must start from **\$2,622,933.67**, be period-correct, and be reconciled to admitted ledgers/banks and the **50% × (markup – 4% [withholding tax])** formula.

5. Three-way split error (founders' pool vs. DeepGulf receipts).

The \$1,304,764.22 figure is the founders' combined pool (Favaro + Ximenes) after DeepGulf had already received \$1,318,169.45 for Moszkowski's 33.33%. PX-15 wrongly divides \$1,304,764.22 among three by adding Moszkowski back in—yet his third was already paid to DeepGulf. Properly stated: \$1,318,169.45 → DeepGulf (~50.3%); \$1,304,764.22 → founders (~49.7%). The founders' \$345,000 payment to Moszkowski for taxes came from their pool; it is not additional DeepGulf entitlement and cannot be re-characterized as DeepGulf profit.

Proposed Finding. The Court declines any PX-15 finding that treats \$1,304,764.22 as a three-party base. The page conflates two separate pools and re-counts Moszkowski's share.

6. Statute of Limitations / Knowledge

Objection. Plaintiffs' delayed-discovery theory is contradicted by admitted communications and financial summaries predating the limitations cutoff.

Proposed Finding. Plaintiffs had actual **or constructive** knowledge of operative facts before the limitations bar.

7. Rule of Completeness

Objection. Plaintiffs quote fragments of communications.

Proposed Finding. Absent the full admitted document, the Court declines to adopt findings derived from excerpts. [No admitted exhibit identified].

8. Damages (Unliquidated)

Objection. Plaintiffs provided no admitted damages model with inputs, timeframe, offsets, and reconciliations tied to the specific breach theories.

Proposed Finding. Plaintiffs failed to prove unliquidated damages by competent, substantial evidence admitted at trial. [No admitted exhibit identified].

Offsets / netting. Any monetary finding must be net of offsets then owed to Defendant, including **\$546,000.00** in accrued salary and reimbursable advances for the period 2005-2007. Absent admitted proof that any questioned payment exceeded amounts then due, the Court declines to enter a diversion/damages finding.

9. Chronology Control / Date Mismatch

Objection. Several proposed findings contradict the dated content of

admitted documents or assert sequences that are impossible given the timestamps in the record.

Date-Control Rule. Findings must align with admitted, contemporaneous records (contracts, registry extracts, emails with headers, bank advices). Where narrative dates conflict with the earliest reliable admitted record, the Court credits the record; where no admitted record supports the asserted sequence, no finding should enter.

Proposed Finding (template). “The asserted date [X] is contradicted by [Ex. __, dated __]; the Court modifies/strikes the finding to conform to the admitted chronology.”

10. Internal Self-Contradictions / Admissions Against Interest

Objection. Plaintiffs’ proposed findings include mutually inconsistent assertions and statements that are self-defeating when compared to Plaintiffs’ own exhibits or other paragraphs (e.g., claiming both uncertainty and closed, dated acquisitions).

Principle. The Court should not adopt internally inconsistent findings. Where one of the inconsistent statements is supported by admitted

evidence and the other is not, the supported statement controls; where neither is supported, no finding should enter.

Proposed Finding (template). “Because ¶[] and ¶[] are mutually inconsistent and only ¶[] is supported by [Ex. __], the Court adopts ¶[] and strikes ¶[]. If neither is supported by admitted evidence, both are stricken.”.

11. Foreign-Entity Assertion, Jurisdictional Posture, and Capacity to Sue

Objection. Plaintiffs relied on Toke’s asserted foreign status to shape the prior jurisdictional posture, but that does not substitute for merits proof in this Court; they must still present admitted foreign corporate records establishing existence, capacity, domicile, and chain-of-title—which they have not.

Proposed Finding. The Court will not adopt merits findings that Toke is (a) a wholly owned subsidiary of DeepGulf or (b) domiciled in Timor-Leste absent admitted foreign corporate records establishing legal existence, domicile, and chain-of-title. Jurisdictional assertions are arguments, not evidence; without admitted proof, no finding enters. [No admitted exhibit

identified].

12. Absence of Transfer Documents; ±6-Month Date Errors; Registry/Compliance Gaps

Objection. Plaintiffs do not cite or identify any transfer instruments (even “private papers”) for the alleged 2010/2012 share transfers in Toke. Their dates for those transfers are further off by approximately six months in each direction. In addition, Plaintiffs offered no admitted registry filings in Timor-Leste and no admitted compliance proofs (minimum paid-in capital, Timorese management requirements, annual reports, tax returns, business taxes). Without (i) the underlying transfer instruments, (ii) registry recognition, and (iii) statutory compliance, Plaintiffs have not carried their burden to prove ownership, capacity to sue, or standing through Toke.

Proposed Finding. Because Plaintiffs identified no admitted transfer documents, the asserted transfer dates are unsubstantiated (and materially inconsistent by ~6 months in each direction), and there are no admitted registry/compliance records, the Court makes no finding that any 2010 or 2012 Toke share transfer to DeepGulf was legally effective or that DeepGulf owns Toke. [No admitted exhibit identified].

13. Corporate Good Standing, 15-Year Non-Appearance, and Impossibility of “Resurrection” Without Reinstatement

Objection. The record contains no admitted evidence that Toke Oil & Gas, S.A. has maintained good standing (or any legal presence) before the Timor-Leste authorities for roughly **15 years**—no current registry certificate, no annual returns, no tax filings, no business-tax receipts, and no proof of local-management compliance. Plaintiffs likewise offered no admitted evidence of any formal reinstatement (if the entity was struck, lapsed, or otherwise non-compliant), including payment of penalties/back taxes and acceptance by the competent authority. Findings that assume Toke’s present capacity to sue, or that it could be “resurrected” without reinstatement and compliance, rest on speculation rather than admitted proof.

Proposed Finding. Absent admitted proof of (a) current good standing or (b) duly granted reinstatement with all statutory preconditions satisfied (including penalties and past-due obligations), the Court declines to find that Toke Oil & Gas, S.A. had legal capacity to sue or that any purported share transfer was legally effective during the relevant period. [No admitted exhibit identified].

14. Board Composition, Quorum, and Interested-Director Authorization (*Two-Director Board*)

Objection. Plaintiffs offered no admitted bylaws/minutes/consents showing that Toke's board duly authorized litigation against Defendant. Further, *after the alleged acquisition* (see [insert admitted exhibit or Tr. p:line]), Toke's board consisted of only two directors: Howard and Defendant Moszkowski. A single interested director cannot unilaterally authorize litigation against the other director; with a two-director board, quorum ordinarily equals two, and recusal of the adverse director collapses quorum unless there is (i) unanimous written consent, (ii) appointment of a disinterested director, or (iii) shareholder ratification under the governing law. Plaintiffs admitted no evidence of any such authorization mechanism.

Proposed Finding. The record contains no admitted evidence of disinterested board authorization, quorum, or shareholder ratification permitting Toke (or DeepGulf, derivatively or otherwise) to sue Moszkowski. If the Court credits Howard's admission that the board had only two directors (Howard and Moszkowski), that admission underscores the lack of quorum and the interested-director defect. Accordingly, the Court

declines to find that Plaintiffs were duly authorized to initiate or maintain this action. [No admitted exhibit identified].

15. “Genesis” Assertions — Invention/Commercialization Skill; Capital-Raising; Formation Timeline

Contested Plaintiffs’ text: “Rustin Howard, Chairman of the Board of DeepGulf and Toke, met Marc Moszkowski through a mutual friend who informed Howard that Moszkowski had an invention but lacked the expertise to commercialize it (Rustin Howard Trial Testimony).”

Disposition: STRIKE (argumentative; no admitted support).

Defects: (i) No admitted exhibit or Tr. p:line cited; (ii) the assertion about Defendant “lacking expertise to commercialize” is an argumentative characterization, not a fact grounded in admitted technical/commercial evidence; (iii) Plaintiffs cite no admitted proof that Howard possessed commercialization/capital-raising expertise or that he raised capital before the first \$5.2 million contract. [No admitted exhibit identified].

Clean Replacement (neutral): “Howard and Moszkowski were introduced through a mutual acquaintance and discussed potential collaboration relating to Moszkowski’s invention. No admitted evidence establishes that

Moszkowski ‘lacked expertise to commercialize’ the invention. [No admitted exhibit identified].”

Contested Plaintiffs’ text: “After discussions, including a visit hosted by Moszkowski in Provence, France, they agreed to form DeepGulf ...”

Disposition: STRIKE or MODIFY (chronology mismatch).

Defects: Plaintiffs’ narrative misorders events: the agreement to incorporate DeepGulf occurred in October 2004; the company’s first web presence (www.deep-inc.com) is dated November 6, 2004; formal incorporation occurred on December 1, 2004; the Provence visit took place between 11 and 26 January 2005—a month and a half after incorporation. Plaintiffs cite no admitted record supporting their reversed sequence.

Proposed Chronology Finding: “DeepGulf was incorporated on December 1, 2004 following an October 2004 decision to incorporate and an initial web presence on November 6, 2004; a subsequent meeting in Provence occurred in late January 2005. Any finding implying that the Provence visit preceded agreement/incorporation is stricken or conformed to the admitted dates.”

16. “Director Salaries”: Ambiguity, Immateriality, and Self-Contradiction

Contested Statement (Howard): “I had no reason to believe that the ‘Directors Salaries’ were paid to the members of the Board of Directors of Toke Oil and Gas, S.A. or to Marc M. Moszkowski. These salaries could have been paid to employees... carrying the title of ‘Director.’”

Objection. The label “Directors Salaries” is ambiguous without admitted payroll/beneficiary records. Plaintiffs offered no admitted ledger, contract, payroll register, wire confirmations, or beneficiary detail identifying who was paid, for what services, and under what authority. Howard’s own statement concedes the ambiguity (could be employees) and is irreconcilable with later claims of outrage if the recipients were actual directors—an immaterial distinction for Plaintiffs’ theories unless (i) DeepGulf’s parent status and (ii) a violated governance rule are both proven by admitted exhibits, which they are not.

Proposed Findings.

Recipients undisputed; characterization not proven. The existence of “Director Salaries” payments (including amounts received by Moszkowski

and by the two Timorese Toke directors) is not in dispute. What Plaintiffs did not prove—by admitted evidence—is that those payments were unauthorized, forbidden by any governing rule, unsupported by services rendered, or otherwise misappropriations. Plaintiffs identified no admitted parent-status documents for DeepGulf, no bylaws/minutes/consents requiring additional approvals under the governing law, and no damages model net of offsets.

Totals were disclosed; split is immaterial without payroll proof. The aggregate total matched the 2010–2012 financial disclosures to-the-cent. Plaintiffs offered no admitted payroll register, wire confirmations, or beneficiary records tying sub-amounts to particular recipients; any per-recipient split is speculative and immaterial. (*See A-7 in Appendix 'A'.*)

Howard’s own statement undercuts scienter/materiality. His assertion that payments could have been to employees “carrying the title of ‘Director’” concedes ambiguity. Even assuming recipients were directors, Plaintiffs still failed to prove (a) DeepGulf had parent rights at the time, (b) a governance rule that was violated, or (c) resulting damages proven by admitted evidence.

VI. Threshold Disposition — Capacity, Authority, and Limitations

1. Capacity / Existence (Toke). Plaintiffs invoked Toke's foreign status to secure the current forum posture, but jurisdictional posture is not merits proof. At trial, Plaintiffs still had to prove—by admitted foreign corporate records—that Toke existed, was in good standing/capacity, and that any equity transfers to DeepGulf were legally effective. They offered none. Absent admitted registry certificates, transfer instruments, approvals, and compliance records, the Court cannot find that Toke existed with capacity to sue or that DeepGulf ever owned it.

2. Corporate Authority to Sue (DeepGulf/Toke). Plaintiffs identified no admitted board resolution, unanimous written consent free of conflict, or shareholder ratification authorizing this suit. On Plaintiffs' own telling, Toke's board at the time comprised two directors—Howard and Moszkowski—a structure that collapses quorum for a suit by one against the other absent a disinterested mechanism. No such mechanism is in the admitted record. Without admitted authorization, Plaintiffs lacked authority to commence or maintain this action.

3. Statute of Limitations (knowledge). Plaintiffs' delayed-discovery

theme is contradicted by contemporaneous communications and “to-the-cent” financial summaries they possessed in 2010–2012. On this record, claims sounding in fraud/fiduciary breach/conversion are time-barred unless grounded in admitted later accrual facts—which Plaintiffs did not supply.

Requested Threshold Ruling. Because Plaintiffs failed to prove **(i)** Toke’s legal existence/capacity and the chain-of-title they assert, **(ii)** corporate authority to sue, and **(iii)** timely claims, the Court should **deny** Plaintiffs’ Proposed Final Judgment in its entirety and enter a take-nothing judgment for Defendant. At minimum, the Court should strike every proposed finding not supported by admitted exhibits or transcript p:lines and decline any findings on Toke ownership, domicile, capacity, or authorization.

VII. Requested Relief

Defendant respectfully requests that the Court:

- 1. Strike** each proposed finding in Plaintiffs’ Revised Proposed Final Judgment that lacks an admitted exhibit or precise transcript citation;
- 2. Decline** any finding that Toke exists with capacity, is domiciled abroad, or is owned by DeepGulf absent admitted foreign corporate

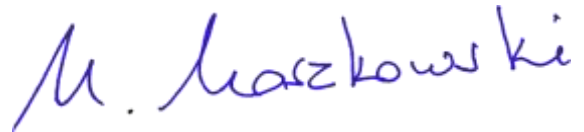
records, and deny Plaintiffs' Proposed Final Judgment to the extent it rests on those unproven premises.

3. **Decline** any finding regarding Toke's chain of title or domicile absent admitted corporate records;
4. **Decline** any finding that DeepGulf had corporate authority to sue absent an admitted authorization;
5. **Deny** any monetary award absent admitted, non-hearsay proof of amount, methodology, and reconciliations;
6. **PX-15 quarantine.** Assign no weight to PX-15 and decline any derivative finding, or adopt the relief in Defendant's Motion to Strike PX-15 (authentication, § 90.956, and ledger/bank tie-outs required).
7. **Periodization order.** Any allocation/damages finding must be period-correct (post-10/27/2010 amounts on the first 33.33%; post-12/13/2012 amounts on the remaining 33.33%) and tied to admitted bank/ledger exhibits.
8. **Netting rule.** Any monetary finding must be net of offsets owed to Defendant at the relevant time, including **\$546,000.00** in accrued salary/reimbursements for the period 2005-2007, supported by admitted ledger/bank tie-outs, and
9. **Adopt** Defendant's clean replacement findings set forth above.

Any paragraph lacking such a citation is STRICKEN.

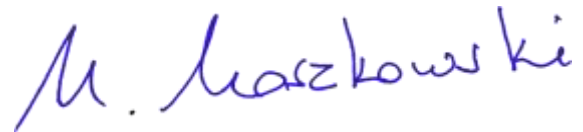
Respectfully submitted on this 29th day of August, 2025.

Marc Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Le Verdos
83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 29th day of August, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.



APPENDIX A — LINE-BY-LINE OBJECTIONS TO PLAINTIFFS' PROPOSED FINAL JUDGMENT (v2)

Citation key: PX = Plaintiffs' Exhibit; DX = Defendant's Exhibit; Tr. = Transcript page:line.

*Source note: Proposed Final Judgment v2 line references in this Appendix refer to **Exhibit "B."***

ID	Plaintiffs' text (short quote)	Disposition	Evidentiary defect	Clean replacement	Evidence pins
A-1 <i>line 18</i>	"Moszkowski lacked expertise to commercialize."	STRIKE	Argumentative; no admitted exhibit or Tr. p:line	The parties discussed collaboration; no admitted evidence shows Moszkowski "lacked expertise to commercialize."	[No admitted exhibit identified]
A-2 <i>line 19</i>	"After a Provence visit they agreed to form DeepGulf."	STRIKE/MODIFY	Chronology reversed. Decision to incorporate Oct 2004; Howard circulated draft Articles of Incorporation on Nov 1, 2004; web presence Nov 6, 2004; incorporation Dec 1, 2004; Provence visit Jan 12–26, 2005.	Agreement to form Oct 2004 → Nov 1, 2004 draft Articles circulated by Howard → Nov 6, 2004 web presence → Dec 1, 2004 incorporation → Jan 11–26, 2005 Provence meeting.	DX-INC-EMAIL-2004-10; DX-AOI-DRAFT-2004-11-01 (email .msg + draft attachment); DX-DOM-2004-11-06; DX-ARTINC-

ID	Plaintiffs' text (short quote)	Disposition	Evidentiary defect	Clean replacement	Evidence pins
					2004-12-01; DX- HOWARD- FRANCE- 2005-01.
A-3 <i>line 36</i>	"Traveled to Timor on Oct 15, 2007."	STRIKE/MODIFY	Date unsupported	Travel not shown for 10/15/2007 ; conform to 11/12/2007 supported by admitted records.	DX-FLIGHT- 2007-11-12
A-4 <i>line 37</i>	"Instead of DeepGulf subsidiary, he made himself owner."	STRIKE	No offer/consent from Toke's two Timorese founders shown; no board/shareholder approvals, no transfer instruments, no registry update ; the claim presupposes an "opportunity" never proven to exist.	The record contains no admitted corporate/registry records or founder communications proving that Toke was ever offered to, or approved as , a DeepGulf subsidiary. Without transfer instruments and registry recognition, no ownership finding	No admitted exhibit identified

ID	Plaintiffs' text (short quote)	Disposition	Evidentiary defect	Clean replacement	Evidence pins
				enters.	
A-5 <i>line 39</i>	"Moszkowski misrepresented that regulations prevented DeepGulf from holding Toke; no such prohibition existed."	STRIKE/MODIFY	Plaintiffs identify no admitted statute, regulation, or expert; no founder offer/consent to become a DeepGulf subsidiary; 2008 turmoil (assassination attempt; instability) made DeepGulf exposure commercially unreasonable; post-2012 compliance not shown, undermining the "no restriction" claim.	Absent admitted legal authority , founder consent, and proof of practicable compliance, the Court finds no misrepresentation regarding regulatory constraints or the decision to keep Toke separate.	RJN Exs. A-D (UN mission dates; contemporaneous reports on the Feb 11, 2008 attacks/Royal Darwin evacuation)
A-6 <i>line 42</i>	"\$345,000 'Director Salaries' without DeepGulf Board approval; discovered Oct 2017 via Lott."	STRIKE/MODIFY	Hearsay; no payroll/beneficiaries/wires; DeepGulf approval irrelevant when DeepGulf did not own Toke; earlier disclosures exist.	No admitted ledger/wire or beneficiaries; discovery date not proven; DeepGulf approval not required absent parent status.	No admitted exhibit identified
A-7	"Email 11/29/2017: 'for your eyes only' ..."	STRIKE/MODIFY Immaterial &	The email was sent to Bill Lott, a DeepGulf director ;	The 11/29/2017 email was an internal	DX-EMAIL-2017-11-29

ID	Plaintiffs' text (short quote)	Disposition	Evidentiary defect	Clean replacement	Evidence pins
<i>line 44</i>	'make Howard sweat.'"	previously disclosed. The email is a tentative split; total equals prior 2010–2012 disclosures to-the-cent ; no concealment.	communications between two of three DeepGulf directors (Lott + Moszkowski) are internal board communications, not concealment from the Board . Any per-recipient split between the two Timorese Toke directors is immaterial to the pleaded claims and unprovable on this record. The aggregate total equals the amounts previously disclosed to-the-cent (2010–2012). Plaintiffs identify no liability or damages theory that turns on whether Director A received x and Director B y (or x'y', x''y''). Absent admitted payroll/beneficiary records , any allocation is speculation and does not	communication to a DeepGulf director (Lott) and reflects a tentative allocation; the author expressly disclaimed knowledge of the precise split. The aggregate total matched prior 2010–2012 disclosures to-the-cent . Because any per-recipient split is immaterial to the pleaded claims and unsupported by admitted payroll/beneficiary proof, and absent the full admitted thread/headers/attachments , the Court draws no adverse inference from phrases such as 'for your eyes only' and makes no finding on individual allocations.	(full thread); DX-FINSUM-2010-Global; DX-FINSUM-2011-Global; DX-FINSUM-2012-Global; DX-DG-BOARD-DIRS-[year showing Lott].

ID	Plaintiffs' text (short quote)	Disposition	Evidentiary defect	Clean replacement	Evidence pins
			affect Toke's or DeepGulf's accounts.		
A-8 <i>line 49</i>	Conversion: \$345,000 to self and \$959,764.22 to shareholders; funds should benefit DeepGulf as parent."	STRIKE	DeepGulf parent status unproven during period; property element unmet; prior rulings reject \$959,764.22	No admitted evidence proves DeepGulf ownership/rights in funds at the time; no conversion finding enters.	No admitted exhibit identified
A-9 <i>line 52</i>	Toke profits available for distribution = \$1,304,764.22; DG entitled to 66.67% (\$869,842.81).	STRIKE / NO- WEIGHT	Base-switch & double- count: \$1,304,764.22 = \$2,622,933.67 – \$1,318,169.45 (DeepGulf receipts), then 2/3 of that residual is added back → \$2,188,012.26 (= 83.42%) to DeepGulf; no admitted model, no authentication/s 90.956 foundation, no ledger/bank tie-outs.	Allocation must start from \$2,622,933.67, be period- correct, and reconcile to admitted ledgers/banks and 50% × (markup – 4% withholding) invoices; the Court declines PX-15's residual-base arithmetic.	PX-15 (copy at Ex. B to Motion, for ID only); PX- 17 (admitted but incomplete); [insert admitted bank/ledger exhibits]
A-10 <i>line 52</i>	\$1,304,764.22 divided among	STRIKE / NO- WEIGHT	Category error: \$1,304,764.22 is the	Recognize two pools: DeepGulf \$1,318,169.45;	Admitted invoices/led

ID	Plaintiffs' text (short quote)	Disposition	Evidentiary defect	Clean replacement	Evidence pins
	Favaro, Ximenes, Moszkowski		founders' two-party pool (Favaro + Ximenes). Moszkowski's 33.33% was already paid to DeepGulf (\$1,318,169.45). The founders' \$345,000 to Moszkowski came from their pool; not DeepGulf's profit.	founders \$1,304,764.22. No three-way split; no re- characterization of the \$345,000 as DeepGulf profit.	gers; PX-17 pages]
A-11 <i>line 58</i>	"PPM 8/6/2012: false info; exaggerated revenues; misrepresented gov't relationship."	STRIKE/MODIFY	No identified false line ; authorship is Howard's; no investor reliance ; no damages model ; date appears 7/19/2012	The 2012 PPM was drafted/distributed by Howard ; Plaintiffs did not prove a specific false statement attributable to Moszkowski, investor reliance, or damages. DeepGulf owned 0% (2010) and 33% (2011) of Toke; inclusion of those years was Howard's editorial choice.	DX-PPM- 2012-07-19 (send email); DX- PPM-TEXT- 2012 (PPM text)
A-12	"Relied solely on Moszkowski; he	STRIKE	Conclusory; no investor reliance; no full	Absent admitted investor reliance and complete	[No admitted exhibit

ID	Plaintiffs' text (short quote)	Disposition	Evidentiary defect	Clean replacement	Evidence pins
<i>line 63</i>	barred contact with East Timor clients/officials."		communications; issuer-drafter was Howard	communications, the Court declines to adopt a fraud finding.	identified]
A-13 <i>line 69</i>	"DeepGulf acquired 33% (8/12/2010) + 67% (5/25/2012) → sole owner."	STRIKE/MODIFY	±6-month errors ; no transfer instruments; no registry update.	Ownership dates must conform to 10/27/2010 (33% for \$1) and 12/13/2012 (67% for \$100,100) if supported; otherwise no ownership finding .	DX-ACQ-2010-10-27; DX-ACQ-2012-12-13
A-14 <i>line 73</i>	"Fiduciary duty requires accounting; refusal to provide records."	STRIKE — no equitable basis	Records produced 2010–2012 and July 2019 ; no specific, existing document identified and refused; by 12/13/2012 payment (after 10/27/2010 stake) Howard either approved the accounting (duty satisfied/ratified) or invested without review (no justifiable reliance); legal damages adequate	Defendant furnished Toke financials in 2010–2012 and again in July 2019 . Plaintiffs have not identified a specific existing document that was refused. Given Howard's 10/27/2010 and 12/13/2012 (\$100,101) acquisitions and pre-acquisition access, the Court declines to order	[No admitted exhibit identified]

ID	Plaintiffs' text (short quote)	Disposition	Evidentiary defect	Clean replacement	Evidence pins
				an equitable accounting.	
A-15 <i>line 77</i>	"Noncompete breached by taking \$345,000 while officer."	STRIKE/MODIFY	Clause not quoted; conduct not tied to restricted period; Toke not shown to be a competitor.	Without the exact clause and timed competitive conduct, no breach enters; Toke not proven a competitor.	[No admitted exhibit identified]
A-16 <i>line 81</i>	"Retains DeepGulf domains/passwords/ data; refusal violates Agreement."	STRIKE/MODIFY	Ownership/control of listed domains not proven; injunction prerequisites not shown	No admitted evidence proves DeepGulf ownership of the domains or unmet injunction elements.	[No admitted exhibit identified]

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

vs.

MARC M. MOSZKOWSKI,

Defendant.

Case No.: 2018 CA 000543

Division:

FINAL JUDGMENT

This matter came before the Court for a bench trial on June 17, 2025. Rustin Howard appeared as the corporate representative of Plaintiffs DeepGulf, Inc. ("DeepGulf") and Toke Oil and Gas, S.A. ("Toke"), and Braden K. Ball, Jr. appeared as counsel for Plaintiffs. Defendant Marc M. Moszkowski ("Moszkowski") did not appear, and a default had been previously entered against him. In addition, Moszkowski's pleadings, including his Counterclaim and Affirmative Defenses, have been stricken. The Court, having considered the testimony and evidence presented, including the testimony of Rustin Howard, the exhibits admitted, the First Amended Complaint, applicable Florida statutes, and case law, hereby enters this Final Judgment.

FINDINGS OF FACT¹

1. **Formation of DeepGulf and Meeting of the Parties:** DeepGulf, Inc., is a Florida corporation with its principal place of business in Escambia County, Florida, engaged in energy transportation, including handling and transportation of hydrocarbons in pipelines ([Rustin Howard Trial Testimony](#); [Foundation of DeepGulf document admitted as Exhibit "2" and DeepGulf Model admitted as Exhibit "3"](#)). Toke Oil and Gas, S.A. is presently a wholly owned

¹ The Statements in the parentheses are from where each factual finding came from.

16 subsidiary of DeepGulf, domiciled in Timor Leste [\(Rustin Howard Trial Testimony\)](#). Rustin
17 Howard, Chairman of the Board of DeepGulf and Toke, met Marc Moszkowski through a mutual
18 friend who informed Howard that Moszkowski had an invention but **lacked the expertise to**
19 **commercialize it** [\(Rustin Howard Trial Testimony\)](#). **After** discussions, **including a visit hosted**
20 **by Moszkowski in Provence, France**, they agreed to form DeepGulf based on Moszkowski's
21 patented J-Lay system technology, designed to lay large pipelines in ultra-deep water [\(Rustin](#)
22 [Howard Trial Testimony\)](#). Both Howard and Moszkowski signed a Noncompetition,
23 Nondisclosure, and Developments Agreement on September 15, 2005, to **protect DeepGulf's**
24 **interests** [\(Rustin Howard Trial Testimony; Noncompetition, Nondisclosure, and Developments](#)
25 [Agreement on September 15, 2005, entered into evidence as Exhibit "1"\)](#).

26 2. **Breach of Non-Competition Agreement (Count 2):** Moszkowski, as an officer
27 and director of DeepGulf, was bound by the Noncompetition, Nondisclosure, and Developments
28 Agreement. The agreement prohibited him **from competing with DeepGulf, soliciting its**
29 **customers**, or using its confidential information for personal gain during and for **one year after**
30 **his business relationship with DeepGulf**. Howard testified that Moszkowski expressed **intent to**
31 **leave DeepGulf, establish a competing company**, and use DeepGulf's technology for personal
32 benefit, in violation of the agreement [\(Rustin Howard Trial Testimony\)](#).

33 3. **Civil Theft- \$345,000 (Count 3):** On September 10, 2007, DeepGulf received an
34 inquiry about using its patented J-Flex Pipelay system for a project in East Timor [\(Rustin](#)
35 [Howard Trial Testimony\)](#). **Howard passed this inquiry to Moszkowski**, who **traveled to East**
36 **Timor on October 15, 2007**, to investigate the opportunity on DeepGulf's behalf [\(Rustin Howard](#)
37 [Trial Testimony\)](#). Instead of establishing Toke as a subsidiary of DeepGulf, **Moszkowski made**
38 **himself an owner** with 30,000 shares (33%) of Toke, alongside VoGue Lda. and Hali Group

S.A., without DeepGulf's authorization [\(Rustin Howard Trial Testimony\)](#). Moszkowski misrepresented to DeepGulf, Inc. that governmental regulations prevented DeepGulf from holding Toke directly, when no such prohibition existed [\(Rustin Howard Trial Testimony\)](#). From 2010 to 2011, Moszkowski caused Toke to pay him \$345,000 in "Director Salaries" without DeepGulf's Board approval, which Howard did not discover until October 2017 through conversations with Bill Lott [\(Rustin Howard Trial Testimony\)](#). An email dated November 29, 2017, from Moszkowski to Lott confirmed Moszkowski's intent to hide these payments from Howard, stating they were "for your eyes only" and meant to make Howard "sweat." [\(Trial Testimony of Rustin Howard; Email between Marc Moszkowski and William Lott dated November 29, 2017 entered into evidence as Exhibit "16"\)](#)

4. **Conversion (Counts 5 and 6):** Moszkowski's unauthorized distribution of \$345,000 to himself and \$959,764.22 to Toke shareholders (VoGue Lda., Hali Group S.A., and himself) as "Director Salaries" constituted an exercise of ownership inconsistent with DeepGulf's rights [\(Rustin Howard Trial Testimony; Spreadsheet created by Rustin Howard entered into evidence as Exhibit "15"; Spreadsheet entered into evidence as Exhibit "17"\)](#). These funds were profits from Toke's three contracts, totaling \$14.9 million, which should have benefited DeepGulf as Toke's parent company [\(Rustin Howard Trial Testimony\)](#). Howard testified that no Toke or DeepGulf Board approval existed for these payments, and Moszkowski refused to provide Toke's financial records [\(Rustin Howard Trial Testimony\)](#).

5. **Fraudulent Misrepresentation (Count 7):** Moszkowski provided false information for a Private Placement Memorandum (PPM) drafted by Howard on August 6, 2012, exaggerating DeepGulf's revenues and misrepresenting its relationship with East Timor's government [\(Rustin Howard Trial Testimony; Private Placement Memorandum entered into](#)

evidence as Exhibit “9”; [Email between Rustin Howard and Marc Moszkowski dated December 1, 2015](#)). Howard relied solely on Moszkowski’s information, as Moszkowski prohibited him from contacting East Timor clients or officials [\(Rustin Howard Trial Testimony\)](#). These misrepresentations induced investments in DeepGulf and concealed Toke’s true ownership and financial status [\(Rustin Howard Trial Testimony\)](#).

6. **Declaratory Relief (Count 8):** Moszkowski’s conflicting assertions about Toke’s ownership—initially claiming he held Toke shares for DeepGulf’s benefit, later denying DeepGulf’s ownership—created uncertainty [\(Rustin Howard Trial Testimony\)](#). DeepGulf acquired 33% of Toke’s shares from Vincente Ximenes on August 12, 2010, and an additional 66% from Ximenes and Moszkowski on May 25, 2012, making DeepGulf the sole owner of Toke. [\(Rustin Howard Trial Testimony\)](#).

7. **Accounting (Count 9):** Moszkowski’s fiduciary duty as an officer and director required him to account for Toke’s transactions [\(Rustin Howard Trial Testimony\)](#). His refusal to provide records necessitates a detailed accounting to determine the extent of misappropriated funds [\(Rustin Howard Trial Testimony\)](#).

8. **Breach of Contract (Count 10):** Moszkowski’s acceptance of \$345,000 from Toke while serving as a DeepGulf officer breached the noncompetition clause of the Agreement, which prohibited working for or benefiting from competing entities [\(Rustin Howard Trial Testimony; Exhibit “1”\)](#).

9. **Injunctive Relief (Count 11):** Moszkowski retains exclusive control over DeepGulf’s domain names (e.g., [www.deepgulf.net](#), [www.deepgulf.com](#), [www.deep-gulf.net](#), [www.deep-gulf.com](#), [http://pipepredictor.com](#)), passwords, and electronic data, which are critical

to DeepGulf's operations ([Rustin Howard Trial Testimony](#)). His refusal to turn over these assets violates the Agreement's provisions on company property ([Rustin Howard Trial Testimony](#)).

10. **Civil Theft - \$959,764.22 (Count 4):** Plaintiffs failed to prove by clear and convincing evidence that the \$959,764.22 distributed to Toke shareholders constituted civil theft under Florida Statutes § 772.11, as the evidence did not sufficiently establish Moszkowski's intent to deprive DeepGulf of these funds.

CONCLUSIONS OF LAW

1. **Jurisdiction and Venue:** This Court has jurisdiction over the parties and subject matter pursuant to Florida Statutes and the Noncompetition, Nondisclosure, and Developments Agreement, which designates Florida law and venue in Florida courts. Venue is proper in Escambia County, Florida, where DeepGulf's principal place of business is located.

2. **Count 1 - Injunctive Relief (Intellectual Property and Developments):** Previously adjudicated in favor of Plaintiffs on March 12, 2025, via the Court's Order Granting in Part and Denying in Part Plaintiffs' Motion for Summary Judgment.

3. **Count 2 - Breach of Non-Competition Agreement:** Moszkowski breached the Noncompetition, Nondisclosure, and Developments Agreement by withholding DeepGulf's technology from the Board of Directors of DeepGulf. Plaintiffs proved by the greater weight of the evidence that Moszkowski violated Paragraphs 1, 2, and 5 of the Agreement. The Court orders Moszkowski to return all software, hardware, intellectual property, and customer lists to DeepGulf within 30 days of this Judgment.

4. **Count 3 - Civil Theft (\$345,000):** Moszkowski's unauthorized payment of \$345,000 to himself from Toke constitutes civil theft under Florida Statutes § 772.11, proven by clear and convincing evidence. Treble damages of \$1,035,000 are awarded, along with

attorney's fees and costs, with the Court reserving jurisdiction to determine the amount of attorney's fees and costs [\(Civil Theft Letter dated January 30, 2018 entered into evidence as Exhibit "13"\)](#).

5. **Counts 5 and 6 - Conversion:** Moszkowski's unauthorized distribution of \$345,000 and \$959,764.22 constitutes conversion, as he exercised ownership over DeepGulf's property inconsistent with its rights. The Court reserves jurisdiction to determine damages pending the accounting ordered under Count 9.

6. **Count 7 - Fraudulent Misrepresentation:** Moszkowski's false representations in the PPM and to DeepGulf's Board regarding Toke's ownership and project revenues constitute fraudulent misrepresentation, proven by the greater weight of the evidence. The Court reserves jurisdiction to determine damages pending the accounting.

7. **Count 8 - Declaratory Relief:** DeepGulf is the sole owner of Toke Oil and Gas, S.A., having acquired all shares by May 25, 2012. Moszkowski's assertions to the contrary are without merit.

8. **Count 9 - Accounting:** Moszkowski's fiduciary duty as an officer and director requires him to provide a detailed accounting of Toke's transactions, to be completed within 60 days of this Judgment, with specificity as to all funds received and distributed.

9. **Count 10 - Breach of Contract:** Moszkowski's acceptance of \$345,000 from Toke breached the noncompetition clause of the Agreement.

10. **Count 11 - Injunctive Relief:** Moszkowski's retention of DeepGulf's domain names, passwords, and electronic data violates the Agreement. He is ordered to release and turn over these assets to DeepGulf within 10 days of this Judgment. Should Marc Moszkowski fail to timely effect the transfer of the Domain Names to DeepGulf, Inc. c/o Rustin Howard, then the

applicable registrar shall transfer the Domain Names to DeepGulf, Inc. c/o Rustin Howard, or the applicable registry shall change the registrar of record of the Domain Names to a registrar designated by DeepGulf, Inc. c/o Rustin Howard, for transfer to DeepGulf, Inc.'s account c/o Rustin Howard. The registrant of record for and control of each of the Domain Names shall be immediately updated by Marc Moszkowski's registrar, or the applicable registrar or registry, to reflect DeepGulf, Inc. c/o Rustin Howard as the registrant of record.

11. **Count 4 - Civil Theft (\$959,764.22):** Plaintiffs failed to meet the clear and convincing evidence standard required by Florida Statutes § 772.11 for the \$959,764.22 claim, and no relief is granted.

12. **Counterclaims:** The Defendant's counterclaims were previously stricken.

ORDER

Based on the foregoing findings of fact and conclusions of law, it is **ORDERED AND ADJUDGED** as follows:

1. Judgment is entered in favor of Plaintiffs DeepGulf, Inc. and Toke Oil and Gas, S.A. on Counts 1, 2, 3, 5, 6, 7, 8, 9, 10, and 11 of the First Amended Complaint.

2. On **Count 1**, Judgment is entered in favor of Plaintiff on Count 1 of the Complaint, and the Court declares that Plaintiff, DeepGulf, Inc., owns the following intellectual properties: United States Patent number: 9644792; United State Patent number: 8146667; United States Patent Publication number: 201200014751; United States Patent Publication number: 20120012225; United States Paten Publication number: 20060130729; and any and all undisclosed inventions and/or patentable ideas or methods conceived by Defendant beginning on September 15, 2005, through the date of this Judgment. Defendant shall not use these intellectual properties for his personal gain without DeepGulf's express consent.

3. On **Count 2**, Judgment is entered in favor of Plaintiff. Defendant Moszkowski shall return all software, hardware, intellectual property, including customer lists, and other information to DeepGulf within **30 days** of the entry of this Final Judgment.

4. On **Count 3**, Judgment is entered in favor of Plaintiff. Defendant Moszkowski is liable for civil theft in the amount of \$345,000, with treble damages of \$1,035,000 awarded to Plaintiffs. Prejudgment interest in the amount of \$290,461.73 is awarded to Plaintiffs. Prejudgment interest is only awarded on the \$345,000 amount. Defendant, Marc Moszkowski is indebted to Plaintiff DeepGulf, Inc. in the amount of \$1,325,461.73, which shall bear interest at the rate of 8.90% for which let execution issue. The Court reserves jurisdiction to determine attorney's fees and costs for this count.

5. On **Counts 5 and 6**, Judgment is entered in favor of Plaintiff. The Court reserves jurisdiction to determine damages for conversion pending the accounting ordered under Count 9.

6. On **Count 7**, Judgment is entered in favor of Plaintiff. The Court reserves jurisdiction to determine damages for fraudulent misrepresentation pending the accounting ordered under Count 9.

7. On **Count 8**, Judgment is entered in favor of Plaintiff and the Court declares that DeepGulf, Inc. is the sole owner of Toke Oil and Gas, S.A.

8. On **Count 9**, Judgment is entered in favor of Plaintiff and Defendant Moszkowski shall provide a detailed accounting of all Toke Oil and Gas, S.A. transactions, with specificity, within **60 days** of the entry of this Final Judgment.

9. On **Count 10**, Judgment is entered in favor of Plaintiff for breach of contract, which is an alternative claim to Count 3 with no additional damages awarded.

10. On **Count 11**, Judgment is entered in favor of Plaintiff. Defendant Moszkowski shall release and turn over all domain names, passwords, and electronic data and information owned by DeepGulf, including but not limited to www.deepgulf.net, www.deep-gulf.net, www.deepgulf.com, www.deep-gulf.com, and <http://pipepredictor.com>, within **10 days** of the entry of this Final Judgment. Should Marc Moszkowski fail to timely effect the transfer of the Domain Names to DeepGulf, Inc. c/o Rustin Howard, then the applicable registrar shall transfer the Domain Names to DeepGulf, Inc. c/o Rustin Howard, or the applicable registry shall change the registrar of record of the Domain Names to a registrar designated by DeepGulf, Inc. c/o Rustin Howard, for transfer to DeepGulf, Inc.'s account c/o Rustin Howard. The registrant of record for and control of each of the Domain Names shall be immediately updated by Marc Moszkowski's registrar, or the applicable registrar or registry, to reflect DeepGulf, Inc. c/o Rustin Howard as the registrant of record.

11. On **Count 4**, Judgment is entered in favor of Defendant Moszkowski, as Plaintiffs failed to prove civil theft under that count by clear and convincing evidence.

12. The Court reserves jurisdiction to enforce this Judgment, determine damages for Counts 5, 6, and 7, and award attorney's fees and costs for Count 3.

DONE AND ORDERED in Pensacola, Escambia County, Florida.